

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RUSSEL VANDUYNE,

Plaintiff,

-against-

CITY OF NEW YORK, P.O. JANELLE NENPOZA
SHIELD #8833, HENRY MANCEBO SHIELD #4227, and
JOHN DOE OFFICERS 1-9,

Defendants.
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiffs designate
New York County as the
Place of trial.

The basis of venue is:
Plaintiffs' Residence

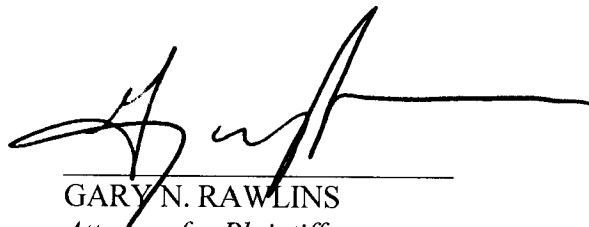
Plaintiffs reside at:
New York, NY 10027

County of New York

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
December 27, 2013



GARY N. RAWLINS

Attorney for Plaintiff

RUSSEL VANDUYNE

80 Broad Street

New York, NY 10004

(212) 926-0050

(212) 926-0059(fx)

TO:

Michael A. Cardozo, Esq.
New York City Law Department
100 Church Street
New York, New York 10007

P.O. JANELLE NENPOZA
32nd Precinct
250 West 135th Street
New York, NY, 10030

HENRY MANCEBO
32nd Precinct
250 West 135th Street
New York, NY 10030

JOHN DOE OFFICERS 1-9
32nd Precinct
250 West 135th Street
New York, NY 10030

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
RUSSEL VANDUYNE,

Plaintiff,

-against-

CITY OF NEW YORK, P.O. JANIELLE NENPOZA
SHIELD #8833, HENRY MANCEBO SHIELD #4227, and
JOHN DOE OFFICERS 1-9,

Defendants.
-----X

**VERIFIED
COMPLAINT**

Index No.:

Date Purchased:

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified
Complaint, respectfully alleges, upon information and belief that:

1. The Plaintiff, **RUSSEL VANDUYNE**, at all times herein mentioned was and still is a
resident of the County of Kings and the State of New York.

2. At all times mentioned herein, Defendants **P.O. JANIELLE NENPOZA**, **HENRY
MANCEBO** and **JOHN DOE OFFICERS 1-9** were and still are residents of the County of
New York and the State of New York.

3. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** ("**CITY OF
NEW YORK**"), was and still is a municipal corporation, created, organized and existing
under and by virtue of the laws of the State of New York.

4. Prior to the commencement of this action, a notice of claim in writing was served on
behalf of Plaintiff **RUSSEL VANDUYNE** upon **CITY OF NEW YORK** in accordance with
Section 50-e of the General Municipal Law.

5. That notice of claim was served on May 17, 2013.
6. Within ninety days of (90) of May 17, 2013 a notice of claim in writing was served on behalf of Plaintiff **RUSSEL VANDUYNE** upon **CITY OF NEW YORK**, in accordance with Section 50-e of the General Municipal Law.
7. Prior to the commencement of this action, notice of the intention of Plaintiff **RUSSEL VANDUYNE** to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by the New York City Charter to adjust such claims, was served on behalf of Plaintiff upon **CITY OF NEW YORK**.
8. Although more than thirty (30) days have elapsed since service of such notice of claim, Defendants neglected and have refused to pay said claim or adjust same.
9. Defendants conducted a hearing pursuant to General Municipal Law 50-h for Plaintiff **RUSSEL VANDUYNE** on September 3, 2013.
10. This action is commenced within one (1) year and ninety (90) days from October 6, 2012 the date of the incident.
11. At all relevant times, Defendants **P.O. JANIELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9** were members of the **NYPD**, and were employees of Defendant **CITY OF NEW YORK**, and were acting for, upon and in the course of and in the furtherance of the business of their employers and within the scope of their employment.
12. The individual Defendants were acting pursuant to the authority conferred upon them by defendant police department and defendant municipality.
13. At all times herein mentioned, Defendants **CITY OF NEW YORK** and **P.O. JANIELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9** stood in

such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

14. Defendants **CITY OF NEW YORK** are vicariously liable for the acts of Defendants **P.O. JANELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9**.

15. By reason of the foregoing, Plaintiff **RUSSEL VANDUYNE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR THE FIRST CAUSE OF ACTION
FOR ASSAULT AS AGAINST ALL DEFENDANTS

16. Plaintiff **RUSSEL VANDUYNE** repeats and re-alleges each and every allegation contained in paragraphs 1 through 15 with full force and effect as if each were more fully set forth herein.

17. Plaintiff **RUSSEL VANDUYNE** sues all Defendants in their individual capacities.

18. On October 6, 2012 at about 7:30 P.M., Plaintiff **RUSSEL VANDUYNE** was wrongfully, unlawfully and unjustifiably arrested, detained and deprived of his liberty against his will, and was imprisoned by defendants, **P.O. JANELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9**, agents, servants, employees, agencies and/or departments and/or at the instigation of those departments.

19. At all relevant times, defendants used excessive force in apprehending, arresting and imprisoning Plaintiff **RUSSEL VANDUYNE**.

20. At approximately 7:30 P.M, on or about October 6, 2012, Plaintiff **RUSSEL VANDUYNE** was in the lobby of his building at 65 West 127th Street, New York, NY 10027 when, **P.O. JANELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9** attacked Plaintiff **RUSSEL VANDUYNE**. Mr. Vanduyne was then transported to Harlem

Hospital located at 506 Lenox Ave, New York, NY 10037 where it was discovered that his attack by Defendants **P.O. JANELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9** resulted in a dislocation of his arm, specifically a Hill Sachs fracture. Mr. Vanduyne was incapacitated due to the dislocation.

21. Defendants used excessive force against Mr. Vanduyne.

22. **RUSSEL VANDUYNE** was injured by the reason of negligence, recklessness and carelessness of **CITY OF NEW YORK** and the **NYPD**, its agents, servants, employees and/or licensees in the control, supervision, hiring and training of the **P.O. JANELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9** who falsely arrested claimant and violated his civil rights.

23. Throughout this period, Plaintiff **RUSSEL VANDUYNE** was wrongfully, unlawfully and unjustifiably held under arrest, deprived of his liberty, imprisoned, and falsely charged.

24. Defendants, **P.O. JANELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9**, agents, servant and/or employees were responsible for Plaintiff **RUSSEL VANDUYNE** arrest, detention and imprisonment during this period of time.

25. Throughout Plaintiff **RUSSEL VANDUYNE'S** imprisonment, Defendants, and **P.O. JANELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9**, agents, servants, and employees refused to give Plaintiff an opportunity to establish his innocence.

26. Defendants intended to and did in fact confine Plaintiff **RUSSEL VANDUYNE** and physically prevented his from leaving their custody and kept him under the supervision without access to his freedom, family and home.

27. Plaintiff **RUSSEL VANDUYNE** was conscious of his unlawful arrest, detention and imprisonment and did not consent to the confinement.

28. At all relevant times, the unlawful, wrongful and false arrest and imprisonment of Plaintiff **RUSSEL VANDUYNE** was without right or privilege, and unjustified and without probable or reasonable cause.

29. At no time did Defendants or **P.O. JANELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9**, agents, servants, employees, agencies and/or departments have a warrant or other legal process for the arrest, detention or imprisonment of Plaintiff **RUSSEL VANDUYNE**.

30. At all relevant times, the false, unlawful, and improper arrest and imprisonment of Plaintiff **RUSSEL VANDUYNE** was forcible and against his will.

31. All of the foregoing occurred without fault or provocation on the part of Plaintiff **RUSSEL VANDUYNE**.

32. As consequences of Defendants' wrongful actions, negligent behavior, and violation of New York State and common laws, Plaintiff **RUSSEL VANDUYNE**:

- a) was deprived of his freedom, liberty and of his ability to pursue happiness;
- b) was incarcerated and suffered in incarceration;
- c) was subjected to great fear, terror, personal humiliation, degradation, ridicule and disgrace;
- d) was subjected to great physical, mental, and emotional distress, suffering and harm, resulting in the need to seek professional counseling for the trauma which they incurred;
- e) was discredited in the minds of many members of the community, having his personal reputation and character injured;

- f) was prevented from attending to his necessary affairs in business during the period of his detention;
- g) was permanently and seriously injured;
- h) and continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of Defendants, their agents, employees, and servants.

33. Defendants acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being, and were guilty of egregious and gross misconduct toward him.

34. By reason of the foregoing, Plaintiff **RUSSEL VANDUYNE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
FOR FALSE ARREST
AS AGAINST ALL DEFENDANTS

35. Plaintiff **RUSSEL VANDUYNE** repeats and re-alleges each and every allegation contained in paragraphs 1 through 36 with full force and effect as if each were more fully set forth herein.

36. On or about October 6th, 2013 Defendant **P.O. JANIELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9** wrongfully, unlawfully, maliciously, and without any warrant or pretense of legal process, detained, imprisoned and confined Plaintiff **RUSSEL VANDUYNE**, depriving Plaintiff of his liberty.

37. Plaintiff **RUSSEL VANDUYNE** unlawful detention and arrest arose from the taking of Plaintiff into custody to be held to answer for a crime that Defendants knew he did not commit.

38. The aforementioned arrest and subsequent detention were without probable cause or any justification and were further based upon Defendants' false statements, falsified reports, falsified documents, falsified evidence and or perjured testimony.

39. By reason of Defendants' actions, Plaintiff **RUSSEL VANDUYNE** suffered the afore-stated personal injury, was deprived of his liberty and was otherwise greatly injured.

40. By reason of the foregoing, Plaintiff **RUSSEL VANDUYNE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS AS
AGAINST ALL DEFENDANTS**

41. Plaintiff **RUSSEL VANDUYNE** repeats and re-alleges each and every allegation contained in paragraphs 1 through 42 with full force and effect as if each were more fully set forth herein.

42. As a result of the above actions, Defendants **CITY OF NEW YORK**, individually, and/or vicariously, by and through its agents, servants and /or employees, and **P.O. JANIELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9**, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **RUSSEL VANDUYNE** by defendants **P.O. JANIELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9**.

43. As a result of the foregoing, Defendant **CITY OF NEW YORK** individually and and/or vicariously by and through their agents servants, and/or employees, and **P.O. JANELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9**, displayed a deliberate indifference to Plaintiff **RUSSEL VANDUYNE'S** rights to be free from unreasonable searches and seizures and excessive use of force.

44. As a result of the foregoing, Defendant **CITY OF NEW YORK** individually and/or vicariously by and through its agents servants, and/or employees, including **P.O. JANELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9**, acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiffs rights and physical well being.

45. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT AGAINST UNREASONABLE SEARCH AND SEIZURE
PURSUANT TO NEW YORK STATE CONSTITUTION ARTICLE 1 SECTION
12 AGAINST ALL DEFENDANTS**

46. Plaintiff **RUSSEL VANDUYNE** repeats and re-alleges each and every allegation contained in paragraphs 1 through 47 with full force and effect as if each were more fully set forth herein.

47. Defendants, and each of them in their individual and official capacities, had a duty under the New York State Constitution Article 1 Section 12 to prevent and cease the wrongful detainment, false arrest, assault, false imprisonment, malicious and false charging and prosecuting, and other wrongful acts that were committed against Plaintiff **RUSSEL VANDUYNE**.

48. In actively inflicting and failing to prevent the above-stated abuses incurred by Plaintiff **RUSSEL VANDUYNE**, all of Defendants acted unreasonably, recklessly, and negligently in failing to exercise the slightest amount of due care to secure and protect the civil and constitutional rights of Plaintiff against illegal search and seizure, physical abuse, detained custody and arrest without other due process violations. The New York State Constitution guarantees said rights to Plaintiff.

49. The breach of duty under the New York State Constitution by the Defendant **P.O. JANELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9** was a direct and proximate cause of the aforestated harm suffered by Plaintiff **RUSSEL VANDUYNE**.

50. By reason of the foregoing, Plaintiff **RUSSEL VANDUYNE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR NEGLIGENT HIRING, TRAINING, RETENTION, AND SUPERVISION
AGAINST DEFENDANTS CITY OF NEW YORK

51. Plaintiff **RUSSEL VANDUYNE** repeats and re-alleges each and every allegation contained in paragraphs 1 through 52 with full force and effect as if each were more fully set forth herein.

52. That at the time of the aforementioned false arrest, false imprisonment, defamation, and violations of Plaintiff **RUSSEL VANDUYNE'S** civil rights, all of the above-captioned Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by Defendant **CITY OF NEW YORK**.

53. Defendant **CITY OF NEW YORK**, at all relevant times herein should have known or had reason or opportunity to know, that the agents, servants and/or employees named as defendants in this complaint were unfit for the employment for which they were hired, unfit for the official duties delegated to them and unfit for the law enforcement, investigatory, and prosecutorial responsibilities to which they were assigned.

54. That by hiring, retaining, employing, failing to supervise, failing to screen, failing to test, failing to evaluate, failing to monitor, failing to manage, failing to train and failing to investigate the aforementioned agents, servants and/or employees, Defendants **CITY OF NEW YORK** negligently created and caused a situation where it was likely that said agents, servants and/or employees would, as a result of their work history, unfit character, malicious temperament, criminal propensity, inadequate training, inadequate management and inadequate supervision, unlawfully arrest, unlawfully imprison, unlawfully deprive innocent persons such as Plaintiff **RUSSEL VANDUYNE** of their Constitutional rights under the New York State Constitution, intentionally, wrongfully and unjustifiably arrested, detained and deprived such person of his liberty against his will, and imprisoned such person without sufficient reasons or probable cause appearing therefore.

55. Defendants **CITY OF NEW YORK** knew or should have known in the exercise of due and reasonable care that the aforementioned agents, servants and/or employees were malicious, vicious, potentially dangerous, and negligent and performing perjurious, criminal and illegal acts during the course of their employment duties.

56. Defendants **CITY OF NEW YORK** were negligent in the hiring, employment, training, retention, management, supervision, screening, testing, evaluating, monitoring, and investigating of the aforementioned agents, servants and/or employees.

57. That by reason of and in consequence of said negligence and lack of reasonable care on the part of defendants **CITY OF NEW YORK** and their agents, servants and/or employees, Plaintiff **RUSSEL VANDUYNE** suffered the afore-stated injuries.

58. By reason of the foregoing, Plaintiff **RUSSEL VANDUYNE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

59. Plaintiff **RUSSEL VANDUYNE** repeats and re-alleges each and every allegation contained in paragraphs 1 through 60 with full force and effect as if each were more fully set forth herein.

60. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff **RUSSEL VANDUYNE'S** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

61. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **RUSSEL VANDUYNE** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

62. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **RUSSEL VANDUYNE** and injury to his good name and reputation.

63. Said harm did in fact occur in this case, in that Plaintiff **RUSSEL VANDUYNE** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

64. By reason of the foregoing, Plaintiff **RUSSEL VANDUYNE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN SEVENTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS

65. Plaintiff **RUSSEL VANDUYNE** repeats and re-alleges each and every allegation contained in paragraphs 1 through 66 with full force and effect as if each were more fully set forth herein.

66. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff **RUSSEL VANDUYNE'S** well being, and were based on a lack of concern and ill-will towards Plaintiff.

67. Plaintiff **RUSSEL VANDUYNE** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR § 1983 CLAIMS AGAINST DEFENDANTS

68. This is a civil litigation action seeking damages against Defendants for committing acts under color of law, and depriving Plaintiffs of rights secured by the Constitution and laws of the United States. Defendants, while acting in their capacities as employees of the City of New York Police Department, deprived Plaintiffs of their liberty without due process of law, thereby depriving Plaintiffs of their rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under 42 U.S.C. § 1983, 28 U.S.C. § 1343, and 28 U.S.C. § 1331.

69. The Plaintiff, **RUSSEL VANDUYNE** at all times herein mentioned was and still is a resident of the County of Kings and the State of New York.

70. At all times mentioned herein, Defendant was and still is a resident of the County of Kings, State of New York.

71. At all times herein mentioned, Defendant CITY OF NEW YORK (“CITY OF NEW YORK”), and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

72. Defendant CITY OF NEW YORK is vicariously liable for the acts of Defendants.

73. At all times herein mentioned, Captain McCormick was and still is employed by the New York City Police Department.

74. At all times Defendant was acting under color of law.

**AS AND FOR THE EIGHTH CAUSE OF ACTION
FOR UNLAWFUL ARREST ON BEHALF OF RUSSEL VANDUYNE**

75. Plaintiff repeats and re-alleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

76. At approximately 7:30 P.M., on or about October 6, 2012, Plaintiff **RUSSEL VANDUYNE** was at 65 west 127th Street, New York, NY 10027 when, **P.O. JANIELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9** assaulted Plaintiff **RUSSEL VANDUYNE**. Mr. Vanduyne was then transported to Harlem Hospital located at 506 Lenox Ave, New York, NY 10037 where it was discovered that his attack by Defendants **P.O. JANIELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9** resulted in a dislocation of his arm, specifically a Hill Sachs fracture. Mr. Vanduyne was incapacitated due to the dislocation.

77. Defendants physically prevented Plaintiff **RUSSEL VANDUYNE** from leaving their custody and kept Plaintiff under their supervision without access to freedom, family and home for three to four hours. All charges against Plaintiff **RUSSEL VANDUYNE** were dismissed.

78. Upon information and belief, Defendants arrested Plaintiff without a warrant or pretense of legal process, depriving Plaintiff of liberty. Plaintiff did not consent to the arrest.

79. All of the foregoing occurred without fault or provocation on the part of Plaintiff.

80. By reason of Defendants' actions, Plaintiff **RUSSEL VANDUYNE's** constitutional rights have been violated.

81. By reason of the foregoing, Plaintiff, **RUSSEL VANDUYNE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION
FOR UNLAWFUL IMPRISONMENT ON BEHALF OF RUSSEL VANDUYNE

82. Plaintiff repeats and re-alleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

83. On or about October 6, 2012, at or about 65 west 127th Street, New York, NY 10027, Defendants wrongfully, unlawfully, maliciously, and without any warrant or pretense of legal process, imprisoned and confined Plaintiff, **RUSSEL VANDUYNE**, depriving Plaintiff of his liberty. Defendants' acts were committed under color of law.

84. Plaintiff was aware of said confinement and did not consent to it.

85. By reason of Defendants' actions, Plaintiff was deprived of his liberty and was otherwise greatly injured.

86. By reason of the foregoing, Plaintiff, **RUSSEL VANDUYNE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A TENTH CAUSE OF ACTION
AGAINST DEFENDANT CITY OF NEW YORK FOR FAILURE TO TRAIN
OR SUPERVISE

87. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

88. At all times mentioned herein, Defendant **CITY OF NEW YORK** knew that its Defendant employees regularly failed to execute search warrants properly.

89. Defendant **CITY OF NEW YORK** knew that such practice posed a risk of a violation of Plaintiffs' constitutional rights and disregarded that risk.

90. Upon information and belief, Defendant **CITY OF NEW YORK** acquiesced in and condoned such practice of arresting everyone in a space identified in a search warrant and trained its **P.O. JANIELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9** to use this practice, failing to stop it and failing to train and supervise **P.O. JANIELLE NENPOZA, HENRY MANCEBO** and **JOHN DOE OFFICERS 1-9**, all in violation of plaintiffs' civil rights.

91. By reason of the foregoing, Plaintiff, **RUSSEL VANDUYNE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A ELEVENTH CAUSE OF ACTION FOR
PUTNITIVE DAMAGES ON BEHALF OF PLAINTIFF**

92. Plaintiff's repeat and reiterate the above allegations.

93. By reason of the foregoing, Plaintiff, **RUSSEL VANDUYNE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff **RUSSEL VANDUYNE** demands judgment against the defendants as follows:

- a. On the First Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- b. On the Second Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of

all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;

- c. On the Third Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- d. On the Fourth Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- e. On the Fifth Cause of Action against **THE CITY OF NEW YORK** all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- f. On the Sixth Cause of Action against all of the above-captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- g. On the Seventh through Eleventh Causes of Action against all of the above captioned defendants, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, jointly and severely;
- h. Together with costs and disbursements of this action.

- i. Such other and further relief as to the Court may seem just and proper.

Dated: New York, New York
December 27, 2013

A handwritten signature in black ink, appearing to read 'Russel Vanduyne', is written over a horizontal line.

RAWLIN LAW FIRM
Attorney for Plaintiff
RUSSEL VANDUYNE
80 Broad Street, 5th Floor
New York, New York 10004
Tel: (212) 926-0050
Fax: (212) 926-0059

TO:

Michael A. Cardozo, Esq.
New York City Law Department
100 Church Street
New York, New York 10007

HENRY MANCEBO
32nd Precinct
250 West 135th Street
New York, NY 10030

P.O. JANELLE NENPOZA
32nd Precinct
250 West 135th Street
New York, NY, 10030

JOHN DOE OFFICERS 1-9
32nd Precinct
250 West 135th Street
New York, NY 10030

ATTORNEY'S VERIFICATION

Gary N. Rawlins, an attorney admitted to practice in the Courts of the State, and attorney for Plaintiff states:

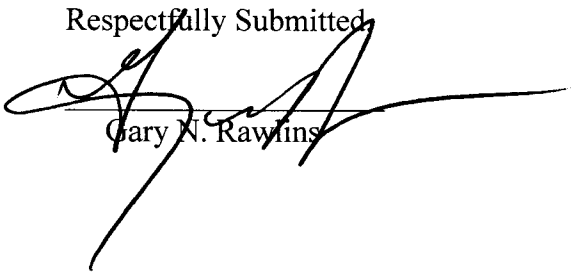
That your affirmant has read the foregoing instrument and knows the contents thereof; that the same is true to your affirmant's own knowledge except as to the matters which are stated therein to be alleged on information and belief, and as to those matters your affirmant believes them to be true. The source of your affirmant's information and belief is an investigation made with respect to the facts in this action.

That the reason this Verification is made by affirmant and not by the Plaintiff is because the Plaintiff do not reside within the county where I maintain my Office.

The undersigned affirms that the foregoing statement is true, under penalties of perjury.

Date: New York, New York
December 27, 2013

Respectfully Submitted,


Gary N. Rawlins

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RUSSEL VANDUYNE

Plaintiff

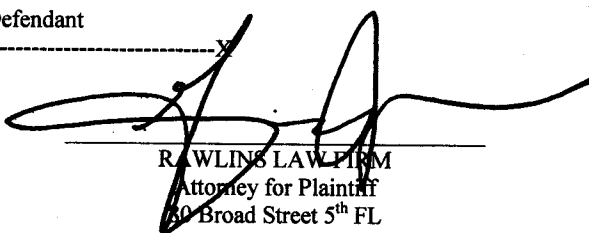
Index No.

SUMMONS AND COMPLAINT

-against-

CITY OF NEW YORK, P.O. JANELLE NENPOZA
SHIELD #8833, HENRY MANCEBO SHIELD #4227,
and JOHN DOE OFFICERS 1-9

Defendant
-----X


RAWLINS LAW FIRM
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To:

NEW YORK CITY LAW DEPARTMENT
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New York, NY 10030

HENRY MANCEBO
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250 West 135th Street
New York, NY 10030

JOHN DOE OFFICERS 1-9
32nd Precinct
250 West 135th Street
New York, NY 10030

Service of a copy of the within is hereby admitted

Dated: _____

Attorney(s) for Defendant(s)

PLEASE TAKE NOTICE

- ☐ That the within is a (certified) true copy of a
Entered in the office of the clerk of the within named court on

NOTICE OF ENTRY

- ☐ That an Order of which the within is a true copy will be presented for settlement to the Hon. _____
one of the judges of the within named Court.